Rajan Kumar vs State Of Nct Of Delhi And Anr on 1 July, 2025

Author: Swarana Kanta Sharma

Bench: Swarana Kanta Sharma

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* IN THE HIGH COURT OF DELHI AT NEW DELHI

\+ BAIL APPLN. 2282/2025

RAJAN KUMAR

Through: Mr

versus

STATE OF NCT OF DELHI AND ANR

Through: Mr

CORAM:

HON'BLE DR. JUSTICE SWARANA KANTA SHARMA

ORDER

% 01.07.2025 CRL.M.A. 18184/2025 (exemption)

1. Allowed, subject to all just exceptions.

2. Application stands disposed of.

3. By way of the present application, the applicant seeks grant of anticipatory bail in case arising out of FIR bearing no. 28/2025, registered at Police Station Cyber Police Station, District West Delhi, for the commission of offences punishable under Sections 318(4)/319(2) of the Bhartiya Nyaya Sanhita, 2023 (hereafter 'BNS').

4. Issue notice. The learned APP accepts notice on behalf of the State.

5. Brief facts of the case are that an FIR came to be registered on the basis of a complaint filed by the complainant Sh. Sanjay Kumar on 08.04.2025, alleging therein that a cyber fraud had been committed and an amount of 45,000/- was debited from his bank account on 08.04.2025. At around 1:30 PM, while he was conversing with his reporting officer Shri This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 01/07/2025 at 21:38:24 Pradeep Singh Kharola (IAS-1985), CMD, India Trade Promotion Organisation, via WhatsApp, he had received a request to transfer 20,000/- to one Rajan Kumar through digital payment platforms Paytm. Believing the request to be genuine, the complainant had transferred the amount via Paytm and had shared the payment screenshot. Thereafter, he had received another request for 25,000/-, which he had transferred via Mobikwik. A subsequent request for 30,000/- raised

suspicion, prompting the complainant to verify the communication, whereupon he discovered that his officer's WhatsApp account had been hacked. An FIR No. 28/2025 was registered under Sections 318(4) and 319(2) of the BNS before cyber Police Station West, on 25.04.2025. The investigation revealed that the defrauded amounts were credited into two accounts (i) Account No. 000521712275082 (Jio Payment Bank) and (ii) Account No. 007110521183 (India Post Payment Bank), both registered in the name of Rajan Kumar. Bank statements showed that the amounts were either spent on personal uses such as fuel and EMI payments or withdrawn in cash. Analysis of the Call Detail Record (CDR) and Customer Application Form (CAF) confirmed the linkage of the mobile number used in the fraud (8271446746) to the accused Rajan Kumar, with usage localized to Bettiah, Bihar. Despite issuance of notices under Section 35(3) of the BNSS and subsequent raids, the accused absconded and failed to join the investigation. Additionally, the Jio Payment Bank account was opened just one day before the fraud and is connected to three other cyber fraud cases across the country, suggesting possible involvement in a wider criminal network.

6. The learned counsel appearing on behalf of the applicant argues that the applicant has been falsely implicated in the present case. It is stated that This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 01/07/2025 at 21:38:24 the friend of the applicant has taken his account details on the pretext of bringing some funds from abroad. It is stated that the applicant herein has already transferred the cheated amount to the complainant. It is, therefore, prayed that the applicant be granted anticipatory bail.

7. The learned APP for the State, on the other hand, argues that the allegations levelled against the present accused/applicant are serious in nature. It is, therefore, requested that the anticipatory bail application of the applicant be dismissed.

8. This Court has heard arguments addressed on behalf of both the sides and has perused the material available on record.

9. After hearing arguments and going through the case file, this Court is of the opinion that the petitioner herein had allegedly hacked the Whatsapp account of Sh. Pradeep Singh Kharola while he was talking to the complainant, and had on pretext of acting as Pradeep Singh Kharola had induced him to transfer a total amount of 45,000/- to his bank account. Though the learned counsel appearing for the petitioner stated that the accused has nothing to do with the alleged offence, however, on the other hand, he stated that he has returned the amount so transferred to his bank account, which shows that the amount was transferred to his account. The accounts wherein the money was transferred stand linked with his mobile phone number. The learned APP for the State has also informed this Court that two more complaints by different persons also have been received by the police wherein after adopting the same modus operandi the amount was illegally transferred to the same two bank accounts, which are in the name of the present accused/applicant, which were used in the present offence also.

10. Considering the overall facts and circumstances of the case, this Court This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 01/07/2025 at 21:38:24 is of the opinion that keeping in mind the fact that cyber offences where innocent persons are cheated of their money are on rise and further two more complaints which have also been received from two other complainants regarding the same account numbers being used for online cyber offence of illegally transferring the amount to the same bank accounts registered in the name of the present accused/applicant, his custodial interrogation will be essential. Therefore this Court is not inclined to grant anticipatory bail to the present applicant.

11. Accordingly, the present application stands disposed of.

12. It is, however, clarified that nothing expressed herein above shall tantamount to an expression of opinion on merits of the case.

13. The order be uploaded on the website forthwith.

DR. SWARANA KANTA SHARMA, J JULY 01, 2025/vc Click here to check corrigendum, if any This is a digitally signed order.

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